

Criminal Misc. No. 9473-B of 2015

Abdul Rehman alias Boota

The State etc.

18.09.2015.

Mr.Ghulam Hussain Awan, Advocate.
Mr.Muhammad Akhlaq, DPG along with Bashir,
ASI.
Khawaja Shoaib Mushtaq, Advocate for the
complainant.

The petitioner seeks post arrest bail in
case FIR No. 301-2014 dated 26.04.2014
registered under Sections 324, 337-H(ii), 336,
148, 149 PPC, at Police Station, Saddar Sialkot.

2. Arguments heard and the record
perused.

3. The record annexed with instant petition
reveals that earlier Crl.Misc.No.9793-B of 2014
was moved by the present petitioner which was
dismissed due to non-prosecution on
02.09.2014. Thereafter Crl.Misc.No.17384-B of
2014 was moved by the petitioner on the same
subject which was withdrawn by the learned
counsel for the petitioner after arguing the case
at full length on 23.01.2015. Through instant
petition, which is third petition on the subject,
the petitioner sought same relief on the fresh
ground that during the investigation, the
petitioner has been found innocent as he was
not found present at the place of occurrence at
the relevant time and the name of the petitioner
has been placed in column No.2 of the challan
dated 25.01.2015 whereas bail petition was
withdrawn from the Court after arguing the case

on 23.01.2015. Admittedly second petition was withdrawn by the learned counsel for the petitioner after arguing the case at full length on 23.01.2015 and the ground agitated in this petition was available to the petitioner at the time of withdrawal of second bail petition.

4. It is an admitted fact that the second investigation was conducted by Khalid Javed, S.I/R.I.B and he opined that the petitioner was innocent and same fact was incorporated in case diary No.33 dated 19.01.2015. However, supplementary challan was prepared on 25.01.2015 and submitted in the court on 06.02.2015. The supplementary challan was submitted on the same material which was collected by the Investigating Officer as on 19.01.2015, no fresh ground was available to the petitioner. If the petitioner had good arguable case, then learned counsel for the petitioner might have not withdrawn the second bail petition.

5. The petitioner is named in the FIR. A specific role has been attributed to him. The injury attributed to the petitioner was duly supported by Medicolegal Certificate. The injuries No.3 & 4 were ascribed to the petitioner, which fall under Section 336 PPC. The opinions of Investigating Officers have vanished when eye-witnesses as well as injured witness stand by their statements under Section 161 Cr.P.C. It is also an admitted fact that the petitioner took specific plea of alibi which has not seen light of day during both investigations. In view of statements of eye-witnesses and injured witness, active participation of the petitioner in the occurrence prima facie is made

out. The medical report reflects that right ulnar nerve in the forearm was damaged and injuries No.3 & 4 were declared falling under Section 336 PPC. It was a heinous offence Itlaf-e-Salahiyyat-i-udu for which the petitioner was charged. Already three prosecution witnesses were recorded but they have not been cross-examined by the defence. The trial is likely to conclude shortly.

6. In view of above discussion, the petition having no substance is hereby **dismissed**.

(Aalia Neelum)
Judge

Approved for reporting.

Judge